

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE:)
TYLER A. MAVES) Docket No. 2012-438
License No. 097.0001160)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through State Prosecuting Attorney S. Lauren Hibbert, and the Respondent, Tyler A. Maves, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 127, 129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners (ARAMHP), and the Rules of the Vermont Office of Professional Regulation.

Statement of Facts

2. Tyler A. Maves (the "Respondent") of Waitsfield, Vermont is on the roster as a Non-Licensed & Non-Certified Psychotherapist under number 097.0001160. Respondent was originally placed on the roster May 25, 2007 and his roster expires on or about November 30, 2014. On May 23, 2013, Respondent applied for licensure as a Licensed Independent Clinical Social Worker. That application is pending and has been assigned the license number of 089.0095621.
3. At all times relevant, Respondent was an owner of True North (the "Facility"), which is a residential treatment program that has been open since December 21, 2005. Respondent's duties required him to be on the Non-Licensed & Non-Certified Psychotherapist Roster ("Roster").
4. The Facility is licensed as a Residential Treatment Program by the Department of Children and Families ("DCF") in the Vermont Agency of Human Services, which licenses, inspects, and regulates it. It is also a recognized independent school under the jurisdiction of the Vermont Agency of Education ("AOE"). Neither DCF nor AOE have complaints about the Facility or join in this Stipulation.

STATE OF VERMONT



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5. Respondent worked without proper licensure from December 21, 2005 until May 25, 2007.
6. In a random selection of 20 client files from the Facility the following was revealed:
 - a. The Facility employed several psychotherapists who either applied to be on the Roster after their first day of employment or did not timely renew their entry on the Roster. Respondent accepts responsibility for these lapses.
 - b. The Facility never provided clients or their families with the mandatory disclosure statements for rostered psychotherapists and methods for filing complaints as required by 26 V.S.A. §4090 and ARAMHR 5.4(a).
 - c. The Facility did not provide its clients with the disclosure statement required under 26 V.S.A. §4090 and ARAMHR 5.4(a) although it described its staff's education, training, and experience on its website and provided it clients with its written complaint and grievance process, as required by the Licensing Regulations for Residential Treatment Programs, section 201. The Facility was unaware that it also had to provide disclosure statements under 26 V.S.A. §4090, having asked its licensing authority DCF. It received no clear answer. Respondent now understands it is his responsibility to provide the disclosures for himself and his staff.

Violations

7. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of:
 - a. 26 V.S.A. § 4083 (No person shall practice psychotherapy unless the person is entered on the roster of psychotherapists who are nonlicensed and noncertified.)
 - b. 3 V.S.A. § 129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession);
 - c. 3 V.S.A. § 129a(a)(6) (Delegating professional responsibilities to a person whom the licensed professional knows, or has reason to know . . . has not been licensed or registered as required by the laws of that person's profession.)

Understandings

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8. Respondent admits the facts above are true and that the conditions below are necessary to protect the public.
9. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
10. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced his rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
11. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
12. Respondent is not under the influence of any drugs or alcohol at the time he signs this Stipulation and Consent Order.
13. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
14. Respondent voluntarily waives his right to a contested hearing before the Board of Nursing and waives any right to appeal from this Stipulation and Consent Order.
15. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **REPRIMANDS** the Respondent's entry on the Roster.
- B. The Board hereby **CONDITIONS** the Respondent's Roster number 097.0001160 for **two (2) years (from the date of entry below)**. The conditions are as follows:

1) Administrative Penalties:

Respondent shall pay an administrative penalty in the amount of 5,000 dollars within sixty (60) days.

2) Evaluator Audit:

Respondent shall employ an approved evaluator who shall do the following on a quarterly basis:

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- a) Review 20 new client files per quarter with the purpose of ensuring disclosures for all staff are accurate and given clients and their respective families. These files may be the some files that are required to be reviewed in paragraph B(2)(a) of the Order in Docket No. 2012-505.
- b) Reviewing staff's credentials to ensure that all staff is appropriately licensed for duties assigned to them.
- c) Prepare and submit a report certifying that Respondent is complaint with disclosure requirement and that all staff are licensed.

At the time of this agreement, the approved evaluator is Allison Cook Anderson, LISCW. If the evaluator needs to change, that request must be made in writing.

3) License Renewal and Costs:

If the Respondent's license expires while this Order is still in effect, this Order does not automatically extend the license. Respondent must timely apply for renewal and pay the applicable fee.

The Respondent shall bear all costs of complying with this Consent Order.

4) Violation of this Order:

If the Respondent violates the terms of this Order in any respect, the Board, after giving the Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against the Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.

5) Completion of Conditional License Period.

After the conditional license period, the Respondent may petition the Board to remove any and all conditions on her license. Respondent shall have the burden of proof.

C. Notwithstanding any provision above, the while in this conditional period, Respondent must continue to meet all requirements for maintaining a license, license renewal and license reinstatement.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

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AGREED TO:

Dated: 10/15/14

STATE OF VERMONT
SECRETARY OF STATE

By: S. Lauren Hibbert
S. Lauren Hibbert
State Prosecuting Attorney

TYLER A. MAVES
RESPONDENT

Dated: 10/15/14

By: Tyler A. Maves
Tyler A. Maves

APPROVED AS TO FORM:

Dated: 10/15/14

ATTORNEY FOR RESPONDENT

By: Eileen Elliot, Esq.
Eileen Elliot, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH
PRACTITIONERS

Dated: 10/16/14

By: Margaret Lombly
Chairperson

Date of Entry: 10/16/14

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